

24STCV20645 24STCV20645

County: los-angeles

Division: Civil Law and Motion

Department: 400

Hearing date: 2026-07-23

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MOTION TO

BIFURCATE

The Court

tenders the following tentative decision in the matter Eleyna Guidry v.

Delta Air Lines, Inc., et al., Los Angeles County Superior Court case

number 24STCV20645, set for hearing on July 23, 2026. Delta Air Lines, Inc. and

Wade Hasegawa (collectively, Defendants) move the Court for an order bifurcating

the issues of liability and punitive damages at trial. Eleyna Guidry

(Plaintiff) opposes bifurcation. The motion is granted.

A.

Legal Standard

“The court, in furtherance of

convenience or to avoid prejudice, or when separate trials would be conducive

to expedition and economy, may order a separate trial of any cause of action,

including a cause of action asserted in a cross-complaint or of any separate

issue or of any number of causes of action or issues, preserving the right of

trial by jury required by the Constitution or a statute of this state or of the

United States.” (Code Civ. Proc., § 1048, subd. (b).)

“The court may, when the

convenience of witnesses, the ends of justice, or the economy and efficiency of

handling the litigation would be promoted thereby, on motion of a party, after

notice and hearing, make an order, no later than the close of pretrial

conference in cases in which such pretrial conference in cases in which such

pretrial conference is to be held, or, in other cases, no later than 30 days

before the trial date, that the trial of any issue or any part thereof shall precede the trial of any other issue or any party thereof in the case.” (Code Civ. Proc., § 598.) “Where trial of the issue of liability as to all causes of action precedes the trial of other issues or parts thereof and the decision of the court or jury is in favor of the allegedly liable party, judgment in favor of that party shall be entered and no trial of other issues in the action against that party will be had.” (Ibid.)

If the decision of the Court or jury on the issue of liability is against the party allegedly liable, the trial of the other issues shall be had before the same or another jury as ordered by the court. (Ibid.)

In

determining whether to order separate trials, courts consider a number of factors including judicial economy, the danger of unnecessary jury confusion if separate trials are not held, and potential prejudice. (Grappo v. Coventry Fin. Corp. (1991) 235 Cal.App.3d 496, 504.) Granting

or denying of a motion for separate trials lies within the trial court's sound discretion and is subject to reversal on appeal only for clear abuse. (Ibid.) Bifurcation frequently occurs when the determination of one issue, such as an affirmative defense, renders other issues moot. (See, e.g., Buran

Equipment v. H& C Investment Co. (1983) 142 Cal.App.3d 338, 343–344.) Trial courts also often bifurcate equitable and legal issues, resolving the issues of equity first in order to promote judicial economy. (Darbun Enters, Inc. v. San Fernando Community Hosp. (2015) 239 Cal.App.4th 399, 408–409.)

B.

Discussion

Defendants argue that bifurcation is warranted in the present matter with respect to the punitive damages issue. “The court shall, on application of any defendant, preclude the admission of evidence of that defendant's profits or financial condition until after the trier of fact returns a verdict for plaintiff awarding actual damages and finds that a defendant is guilty of malice, oppression, or fraud in accordance with Section 3294.” (Civ. Code, § 3295, subd. (d).) Here, bifurcation of the punitive damages issue would avoid prejudice to Defendants by excluding evidence of profits or financial condition from the liability phase and support judicial economy by potentially eliminating discussion of such evidence if the jury returns a defense verdict. Indeed, the Court lacks discretion to deny bifurcation pursuant to section 3295. And the bifurcation requested by

Defendant is only with respect to the punitive damages phase, not bifurcation of damages in its entirety. Thus, Plaintiff is still entitled to introduce evidence of damages and is only prohibited from introducing evidence of the kind discussed in section 3295 until the punitive damages phase of the trial, should one be necessary. Accordingly, Defendants' motion is granted.

Conclusion:

The Court grants
the motion.